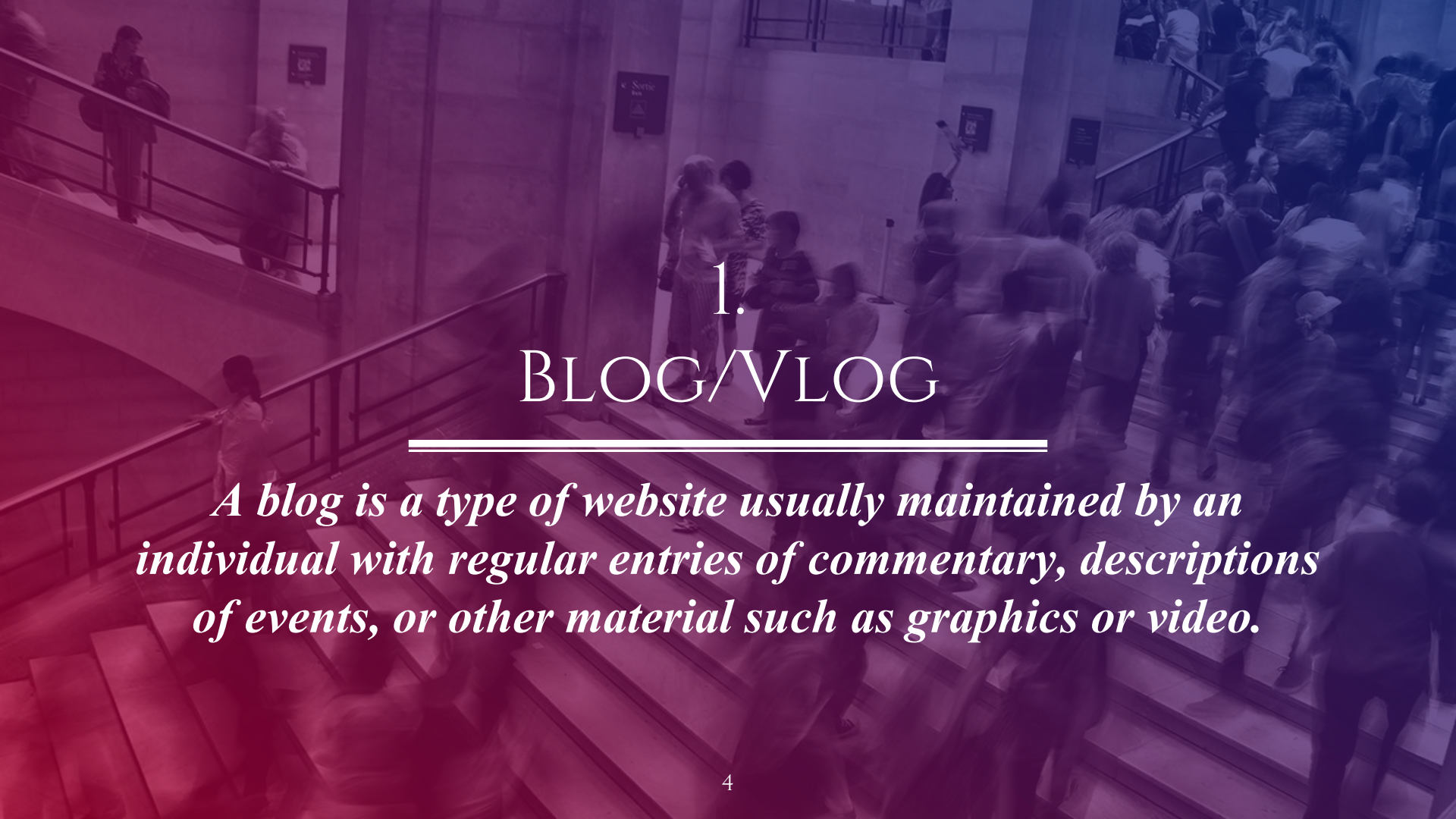
THE BLOGGER'S FREEDOM OF EXPRESSION AND THE CYBER LIBEL LAW

Intended Learning Outcomes

At the end of this chapter, the student is expected to:

- Defend his rights to freedom of expression as well as to make or design his own blogs;
- Recognize the limitation of his right to free expression;
- Discuss the tests in which a subsequent punishment nay be allowed for a person who has abused his right to free expression;
- Be familiar with the cyber libel law and its elements;
- Memorize the elements of defamation;
- Argue or judge whether a particular exercise of free expression constitutes libel and/or defamation; and
- Interpret a libelous statement;

With the emergence and popularity of blogging as a new form of expression, the extent of defamation laws has extended to cyberspace. The consequence is that people who were adversely affected by writings in this medium is bringing lawsuits to protect their name and reputation. While the Philippine Constitution protects bloggers' right to free speech and expression, this does not give them unfettered license to write to the detriment of others.



1.
Blog/Vlog

A blog is a type of website usually maintained by an individual with regular entries of commentary, descriptions of events, or other material such as graphics or video.


Don’t focus on having a great blog. Focus on producing a blog that’s great for your readers.
BRIAN CLARK
GRACIOUSQUOTES.COM

Sec 4(c)(4) reads:

(4) Libel. – The unlawful or prohibited acts of libel as defined in Article 355 of the Revised Penal Code, as amended, committed through a computer system or any other similar means which may be devised in the future.



Big concept

"Freedom of Expression"

Scope of the Freedom of Expression

The Philippine Constitution provides that "*No law shall be passed abridging the freedom of speech, of expression, or of the press, or the right of the people peaceably to assemble and petition the Government for redress of grievances.*"

(Art. III, Sec 4, Constitution).

To protect the rights of persons having an adverse political beliefs and aspirations, the Constitution further provides: "No person shall be detained solely by reason of his political beliefs and aspirations."

(Art III, Sec 18(1) Constitution).

Elements of Freedom of Expression

1. Freedom from Prior Restraint or Censorship.

Prior restraint means official governmental restrictions on the press or other forms of expression in advance of actual publication or dissemination.

2. Freedom from Punishment.

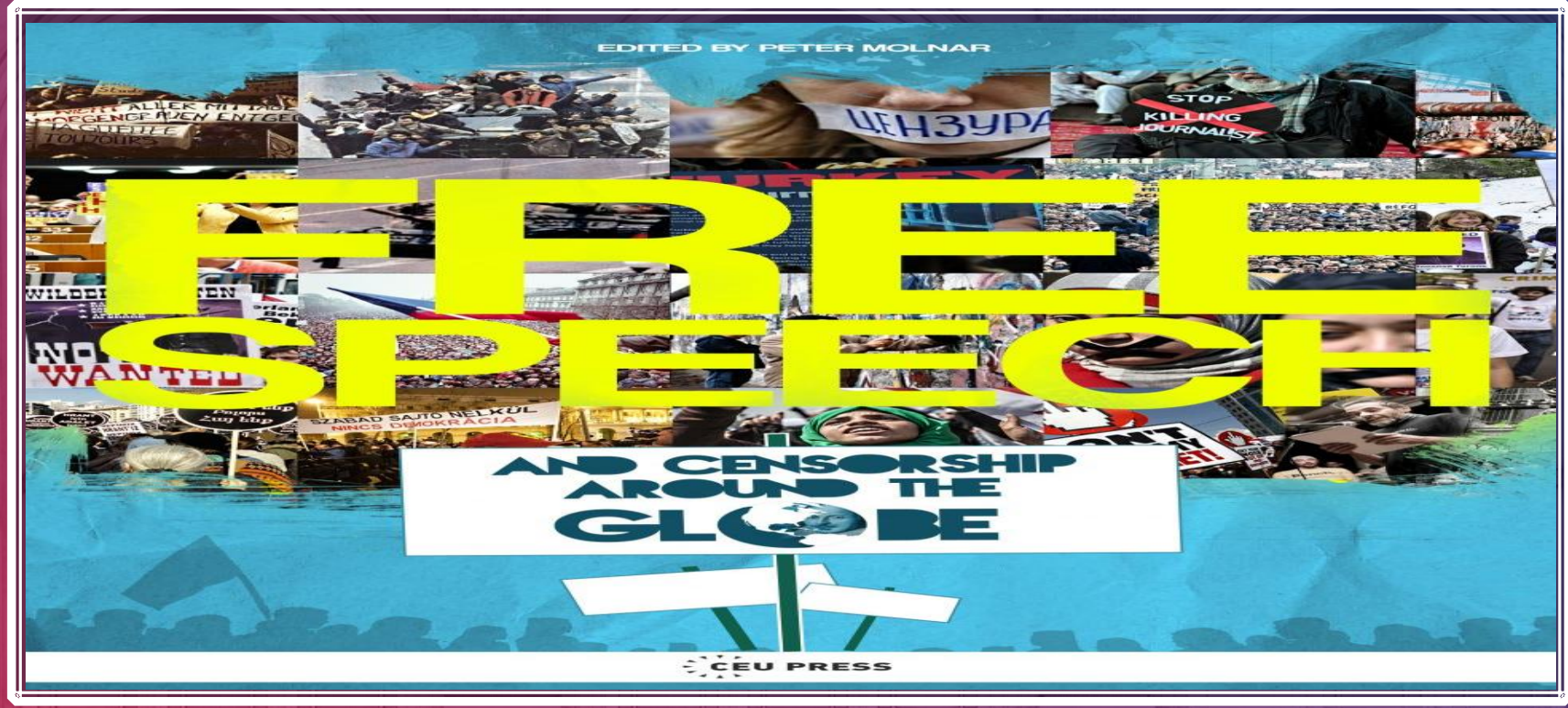
The freedom from prior restraint would be set at naught if the citizen would hesitate to speak for fear of vengeance that he might suffer against the officials he criticized.

Bases of the Guarantee of the Right of freedom of Expression





Knowing that objections to freedom of thought and inquiry can have detrimental implications.


EDITED BY PETER MOLNAR
FREE SPEECH
AND CENSORSHIP AROUND THE GLOBE
CEU PRESS

Both foreign and local jurisprudence recognized that there are two Philosophical bases for the guarantee of this right. Jurisprudence refers to final decisions of the Supreme Court which forms part of the legal system in our country.

Discovery of Truth (free market of an idea). The freedom of expression is essential for the search of truth. This is the marketplace of idea which posits the power of thought can be tested by its acceptability in the competition of the market.

For Self-Government. Since it is the people who have chosen directly or indirectly the person who will govern them, the scope of the guarantee is broader when people criticize public officials.

Limitations of the Guarantee

While the Philippine Constitution protects peoples' right to free speech and expression, this does not give them free license to write to the detriment of others.

Imagine while you were watching a movie, somebody shouted, "*FIRE! FIRE!',* and so, the people panicked and ran. As a result, there was a stampede and several people died and some were injured. It turned out that the person who shouted was just kidding. Will you accept his defense that he is just exercised his right to freedom of expression?

Limitations of the Guarantee

Only the indifferent will answer this in positive. This will lead us into a conclusion that our right to free expression is NOT absolute. It has limitations.

Libel as an Unprotected Speech

The characterization of libel as constitutionality UNPROTECTED SPEECH is EASILY UNDERSTANDABLE when the object of criticism is NOT a public figure. A private person is entitled to the protection of his own reputation, and the stupidity or immorality of his acts affecting only his private life is **NOT of vital concern to the common weal**.

But when a person becomes a public figure either as an occupant of or aspirant to a public office, the wisdom or stupidity of his actions and the absence or abundance of his mental and moral qualifications for office, **ARE OD VITAL CONCERN TO THE PUBLIC** (Commentary to the 1987 Constitution by Fr. Joaquin Bernas, 2003).

Libel

Libel is punished by our Revised Penal Code which

Art 353. Definition of Libel. – A libel is public and malicious imputation of a crime, or of a vice or defect, real or imaginary, or any act, omission, condition, status, or circumstance tending to cause the dishonor, discredit, or contempt of a natural or juridical person, or to blacken the memory of one who is dead.

Art. 354. Requirement for publicity. – Every defamatory imputation is presumed to be malicious, even if it be true, if no good intention and justifiable motive for making it is shown, except in the following cases:

Libel

1. A private communication made by any person to another in the performance of any legal, moral, or social duty; and

2. A fair and true report, made in good faith, without any comments or remarks, of any judicial, legislative or other official proceedings which are not of confidential nature, or of any statement, report or speech delivered in said proceedings, or any other act performed by public officers in the exercise of their functions.

Libel

Art. 355 Libel means by writings or similar means. – A libel committed by means of writing, printing, lithography, engraving, radio, phonograph, painting, theatrical exhibition, cinematographic exhibition, or any similar means, shall be punished by prison correctional in its minimum and medium periods or a fine of ranging from 200 to 6,000 pesos, or both, in addition to the civil action which may be brought by the offended party.

Libel

Strictly speaking, Art. 355 is referring to defamation in general or slander which came from the Spanish text, “defamation” and which was translated in the English text as “libel”. The crime “Libel” is defined in Art. 355. Thus, a good definition of libel should be:

Libel is a defamation committed by means of writing, printing, lithography, engraving, radio, phonograph, painting, theatrical exhibition, cinematographic exhibition, or any similar means.

Reasons for Punishing Defamation

The Bible said that "*A good name is to be chosen rather than great riches…"* (Proverbs 22:1). In Proverbs 19, it says, "Better is the poor who walks in his integrity than one who is perverse in his lips and is a fool." In this sense, it applies the Divine Command Theory under the premise that the reader is a Christian.

A few years back, a former Military General and Defense Secretary who made us appreciate the old song "What a Wonderful World" when we heard him sang that song, had committed suicide in front of his mother's grave. This was because of the accusations thrown against him. According to him, family reputation and honor are very important. In our Philippine culture, family honor and integrity are given much respect.



THANK YOU FOR LISTENING. . .